

This **MUTUAL CONFIDENTIALITY AGREEMENT** is dated 16th June 2025

PARTIES

- (1) Envision Energy Technology PTE. LTD a company incorporated and registered in Singapore with company number 202305993Z whose registered office is at 10 Anson Road #11-07, International Plaza, Singapore ("**Party 1**"); and
- (2) Lakdhanavi Limited a company incorporated and registered in Sri Lanka with company number PB 239 whose registered office is at No. 67, Park Street, Colombo 02. ("**Party 2**"),
(each a "**party**" and together the "**parties**").

BACKGROUND

- I. Party 1 is a technology company specialising in smart energy solutions, including smart turbines, smart energy management software and technological services.
- II. Party 2 is an engineering company specialising in power plant construction, operation and maintenance on Built Own and Operate basis.
- III. The parties intend to enter into discussions relating to the Purpose which will involve the exchange of Confidential Information between them. The parties have agreed to comply with this agreement in connection with the disclosure and use of Confidential Information.

AGREED TERMS

1. Interpretation

The following definitions and rules of interpretation apply in this agreement:

1.1 Definitions:

Affiliate: in relation to a company, any other entity that directly or indirectly, through one or more intermediaries, controls, is controlled by or is under common control with such company.

Business Day: a day when banks are open for business other than a Saturday, Sunday or public holiday in the country where the recipient of a notice under clause 11.7 is based.

Confidential Information: has the meaning given in clause 2.

Discloser: a party to this agreement when it discloses its Confidential Information, directly or indirectly, to the other party.

Effective Date: shall mean the last date that this agreement has been signed by the Parties.

Group: in relation to a company, that company, any company of which it is a Subsidiary from time to time and any other Subsidiaries from time to time of that company or its holding company.

Group Company: in relation to a company, any member of its Group.

Purpose: Supply of goods or services by Party 1 or its Affiliate to Party 2 or its Affiliate in connection with participation of Party 2 in the tender "Development of 2 x 50 MW Wind Farm Facilities at Mullikulam on



Build, Own and Operate (BOO) Basis", Bid No: TR/REP&PM/ICB/2025/001/C dated 20th March 2025 as a bidder.

Recipient: a party to this agreement when it receives Confidential Information, directly or indirectly, from the other party.

Representative(s): in relation to each party: (a) its officers and employees and those of its Group Company and Affiliates; (b) its professional advisers and consultants, and those of its Group Company who are engaged to advise that party or the Group Company; and (c) any other person to whom the other party agrees in writing beforehand that Confidential Information may be disclosed, in each case that need to know the Confidential Information in connection with the Purpose.

Subsidiary: in relation to a company wherever incorporated (a holding company), any company in which the holding company for the time being directly or indirectly holds or controls either: (a) a majority of the voting rights exercisable at shareholder meetings of that company; or (b) the right to appoint or remove a majority of its board of directors, and any company which is a Subsidiary of another company is also a Subsidiary of that company's holding company.

1.2 Interpretation

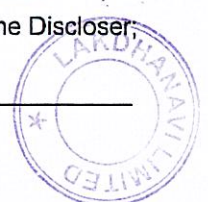
- (a) Any words following the terms including, include, or any similar expression shall be construed as illustrative and shall not limit the sense of the words, description, definition, phrase or term preceding those terms.
- (b) A reference to writing or written includes fax and email.
- (c) A reference to a company shall include any company, corporation or other body corporate, wherever and however incorporated or established.

2. Confidential Information

Confidential Information means all confidential information relating to the Purpose which the Discloser or its Representatives has/have marked "confidential" or similarly legended or identified at the time of disclosure and directly or indirectly discloses to the Recipient or its Representatives before, on or after the Effective Date of this agreement. This includes: (a) the fact that discussions and negotiations are taking place and the status of those discussions and negotiations; (b) the terms of this agreement; (c) all confidential or proprietary information relating to: (i) the business, affairs, customers, suppliers, intentions, or market opportunities of the Discloser or of the Discloser's Group Company; and (ii) the operations, processes, product information, know-how, technical information, designs, trade secrets or software of the Discloser, or of the Discloser's Group Company; (d) any information derived from Confidential Information; and (e) any other information that is identified or should reasonably be recognised as being of a confidential or proprietary nature, but excludes any information referred to in clause 2.1.

Provided that, in the case of oral or visual disclosures, such information shall be considered Confidential Information only if it is identified as confidential at the time of disclosure and is reduced to writing and marked "Confidential" (or similarly) by the Disclosing Party within seven (7) days of such disclosure.

- 2.1** Information is not Confidential Information if, proven by reasonable means by the Recipient, (a) it is, or becomes, generally available to the public other than as a direct or indirect result of the information being disclosed by the Recipient or its Representatives in breach of this agreement; (b) it was available to, or lawfully in the possession of, the Recipient on a non-confidential basis prior to disclosure by the Discloser,



(c) it was, is, or becomes available to the Recipient on a non-confidential basis from a person who, to the Recipient's knowledge, is not under any confidentiality obligation in respect of that information; (d) it is developed by or for the Recipient independently without violation of the terms of this agreement or reference or access to the Confidential Information disclosed by the Discloser; or (e) the parties agree in writing that the information is not confidential.

3. Confidential Obligations

- 3.1** In return for the Discloser making Confidential Information available to the Recipient, the Recipient undertakes to the Discloser that it shall: (a) keep the Confidential Information secret and confidential; (b) not use or exploit the Confidential Information in any way except for the Purpose; (c) not directly or indirectly disclose any Confidential Information to any person, except in accordance with this agreement; and (d) not copy, reverse engineer or decompile, reduce to writing or otherwise record the Confidential Information except as strictly necessary for the Purpose and in accordance with this agreement. Any such copies, reductions to writing and records shall be and remain the property of the Discloser.
- 3.2** The Recipient shall establish and maintain adequate security measures to safeguard the Confidential Information from unauthorised access or use.
- 3.3** Notwithstanding any other provision of this agreement, the Recipient shall not be allowed to and shall agree not to disclose (and shall use reasonable endeavours to prevent the disclosure of) the Confidential Information to (i) any party that is a wind turbine manufacturer or otherwise competing directly or indirectly with the Discloser or one or more of its Affiliates; (ii) any person or company directly or indirectly controlled by a company that competes directly or indirectly with the Discloser or one or more of its Affiliates; or (iii) any person or company where any litigation or dispute is ongoing between such person or company and the Discloser.

4. Permitted Disclosure

- 4.1** The Recipient may disclose the Confidential Information to its Representatives on the basis that it: (a) informs those Representatives of the confidential nature of the Confidential Information before it is disclosed; and (b) procures that those Representatives comply with the obligations of this agreement as if they were the Recipient and (c) upon request provides evidence of such compliance.
- 4.2** The Recipient shall be liable for the actions or omissions of its Representatives in relation to the Confidential Information as if they were the actions or omissions of the Recipient.

5. Mandatory Disclosure

- 5.1** Subject to the provisions of this clause 5, a party may disclose Confidential Information to the minimum extent required by: (a) an order of any court of competent jurisdiction or any regulatory, judicial, governmental or similar body or any taxation authority of competent jurisdiction; (b) the rules of any listing authority or stock exchange on which its shares or those of its Group Company are listed or traded; or (c) the laws or regulations of any country to which its affairs or those of its Group Company are subject.
- 5.2** Before a party discloses any Confidential Information pursuant to clause 5.1 it shall, to the extent permitted by law, use all reasonable endeavours to give the other party as much notice of this disclosure as possible; but in any case such disclosure shall be only to the minimum extent that disclosure is compellable by law.



provided always that wherever reasonably practicable the Recipient shall (where legally permissible) give the Discloser not less than two (2) Business Days' prior notice of any action which it reasonably believes may result in any such requirement and the Recipient shall consult with the Discloser in respect thereof. Where notice of such disclosure is not prohibited and is given in accordance with this clause 5.2, that party shall take into account the reasonable requests of the other party in relation to the content of this disclosure.

- 5.3** If a party is unable to inform the other party before Confidential Information is disclosed pursuant to clause 5.2, it shall, to the extent permitted by law, inform the other party of the full circumstances of the disclosure and the information that has been disclosed as soon as reasonably practicable after such disclosure has been made.

6. Return or destruction of Confidential Information

- 6.1** Upon the expiry of the term of this agreement or its earlier termination or if so requested by the Discloser at any time (including but not limited to instances where the Parties reasonably foresee and agree that they fail to accomplish the Purpose) by notice in writing to the Recipient, the Recipient shall: (a) destroy or return to the Discloser all documents and materials containing or based on the Discloser's Confidential Information; (b) erase all the Discloser's Confidential Information from its computer and communications systems and devices used by it, or which is stored in electronic form; and (c) to the extent technically and legally practicable, erase all the Discloser's Confidential Information which is stored in electronic form on systems and data storage services provided to it by third parties.

- 6.2** Nothing in clause 6.1 shall require the Recipient to return or destroy any documents and materials containing or based on the Discloser's Confidential Information that the Recipient is required to retain by mandatory applicable law, or to satisfy the requirements of a regulatory authority or body of competent jurisdiction or the rules of any listing authority or stock exchange, to which it is subject. The provisions of this agreement shall continue to apply to any documents and materials retained by the Recipient pursuant to this clause 6.2.

7. Reservation of rights and acknowledgment

- 7.1** All Confidential Information disclosed under this agreement shall be and remain the property of the Discloser. Each party reserves all rights in its Confidential Information. The disclosure of Confidential Information by one party does not give the other party or any other person any licence or other right in respect of any Confidential Information beyond the rights expressly set out in this agreement.
- 7.2** Except as expressly stated in this agreement, neither party makes any express or implied warranty or representation concerning its Confidential Information, including but not limited to the accuracy or completeness of the Confidential Information.
- 7.3** The disclosure of Confidential Information by the parties shall not form any offer by, or representation or warranty on the part of, that party to enter into any further agreement with the other party.

8. Rights and remedies

- 8.1** Except as expressly provided in this agreement, the rights and remedies provided under this agreement are in addition to, and not exclusive of, any rights or remedies provided by law.



8.2 Without prejudice to any other rights or remedies that each party may have, each party acknowledges and agrees that damages alone would not be an adequate remedy for any breach of the terms of this agreement by the other party nor justify the breach. Accordingly, each party shall be entitled to the remedies of injunctions, specific performance or other equitable relief for any threatened or actual breach of this agreement.

8.3 The Recipient shall reimburse the Discloser for any costs, claims, demands or liabilities arising directly out of a breach. Nothing contained in this agreement shall be construed as prohibiting the non-defaulting Party from pursuing any other remedies available to it for a breach or threatened or anticipatory breach.

9. No obligation to continue discussions

Nothing in this agreement shall impose an obligation on either party to continue discussions or negotiations in connection with the Purpose; and neither shall it impose an obligation on either party or its Group Company to disclose any information (whether Confidential Information or otherwise) to the other party.

10. Ending discussions, term and duration of confidentiality obligations

(a) This Agreement shall come into force on the Effective Date and shall automatically terminate three (3) years later.

(b) If either party decides not to continue to be involved in the Purpose with the other party, it shall notify that other party and prematurely terminate this agreement with thirty (30) days' prior written notice.

(c) Notwithstanding such prior termination or the end of discussions between the parties in relation to the Purpose pursuant to this clause 10, each party's obligations under this agreement shall continue in full force and effect for a period of three (3) years from the Effective Date of this agreement, save otherwise agreed. The end of discussions relating to the Purpose shall not affect any accrued rights or remedies to which either party is entitled.

11. General

11.1 Assignment and other dealings. Neither party shall assign, transfer, mortgage, charge, subcontract, delegate, declare a trust over or deal in any other manner with any of its rights and obligations under this agreement without the prior written consent of the other Party.

11.2 No Partnership or Agency. Nothing in this agreement is intended to, or shall be deemed to, establish any partnership or joint venture between the parties, constitute any party the agent of another party, or authorise any party to make or enter into any commitments for or on behalf of any other party. Each party confirms it is acting on its own behalf and not for the benefit of any other person.

11.3 Entire agreement

(a) This agreement constitutes the entire agreement between the parties and supersedes and extinguishes all previous agreements, promises, assurances, conditions, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.

(b) Each party agrees that it shall have no remedies in respect of any statement, representation or warranty (whether made innocently or negligently) that is not set out in this agreement. Each party



agrees that it shall have no claim for innocent or negligent misrepresentation based on any statement in this agreement.

11.4 Variation. No variation of this agreement shall be effective unless it is in writing and signed by the parties (or their authorised representatives).

11.5 Waiver. No failure or delay by a party to exercise any right or remedy provided under this agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

11.6 Severance. If any provision or part-provision of this agreement is or becomes invalid, illegal or unenforceable, the validity, legality and enforceability of any other provision of this agreement shall not be affected.

11.7 Notices

Notices under this agreement shall be in writing, in English, and sent to a party's address set out on the front page of this agreement or to the email address set out below. Notices may be given and shall be deemed received:

- (a) by pre-paid first-class post or other next working day delivery service: at 9.00am on the second Business Day after posting;
- (b) by airmail or reputable overnight courier (if the notice is to be served by post to an address outside the country from which it is sent): on the date and at the time that the courier's delivery receipt is signed;
- (c) by hand: on delivery; or
- (d) by email to zhibo.liu@envision-energy.com in the case of Party 1 and indika.priyantha@lkl.lk in the case of Party 2: at the time of transmission, or, if this time falls outside business hours (9.00am to 5.00pm) on a Business Day in the place of receipt, at 9.00am on the following Business Day.

Any subsequent modification of a party's address should be reasonably communicated.

This clause does not apply to notices given in legal proceedings.

11.8 Third Party rights. No one other than a party to this agreement shall have any right to enforce any of its terms.

11.9 Counterparts. This agreement may be executed in counterparts, each of which when executed shall constitute a duplicate original, but all the counterparts shall together constitute the one agreement. Transmission of the executed signature page of a counterpart of this agreement by email shall take effect as delivery of an executed counterpart of this agreement. No counterpart shall be effective until each party has executed at least one counterpart.

11.10 Governing law. This agreement and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it shall be governed by and construed in accordance with the laws of England and Wales.



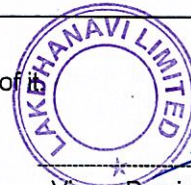
- 11.11 Jurisdiction.** All dispute and claim (including non-contractual disputes and claims) arising out of or in connection with this agreement shall be submitted to arbitration administered under the Rules of Arbitration of the International Chamber of Commerce. The place, venue and seat of arbitration is Singapore. The language of the arbitration is English.
- 11.12 Signatures.** Signatures of this agreement may be made and delivered electronically, provided that the electronic signature allows identification and authentication of the signer and enables the verification of the integrity of the signed document. Neither Party may object to the legal effect or enforceability, as a result of such electronic signature, which will be considered to be an original binding signature.

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This agreement has been entered into on the date stated at the beginning of

Signed by Indika Priyantha as the Vice President – Renewable Energy

for and on behalf of Lakdhanavi Limited



Vice President – Renewable
Energy

Signed by John Lee as the General Manager of Envision Energy Asia
& Africa Markets

for and on behalf of Envision Energy Technology PTE. LTD.



General Manager of Envision
Energy Asia & Africa Markets

